

HOUSE No. 977

The Commonwealth of Massachusetts

PRESENTED BY:

Kristin E. Kassner

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to data collection on below threshold wells.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Kristin E. Kassner</i>	<i>2nd Essex</i>	<i>1/15/2025</i>

HOUSE No. 977

By Representative Kassner of Hamilton, a petition (accompanied by bill, House, No. 977) of Kristin E. Kassner relative to data collection on below threshold wells. Environment and Natural Resources.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to data collection on below threshold wells.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 20 of Chapter 21G shall be amended to insert the following: - Local
2 boards of health or other permitting bodies that oversee local permitting of wells in
3 municipalities shall provide annually by December 31st, a report of the below-threshold wells
4 permitted to the Department of Environmental Protection (DEP). Data should include, but not be
5 limited to: Location/address of well; primary use (i.e., residential, irrigation, commercial,
6 farming); and year of permit issuance.

7 SECTION 2. DEP shall use this data to estimate withdrawals from below-threshold wells
8 at a sub-basin scale. Estimated below threshold well withdrawals shall be included in estimates
9 of water withdrawals by basin and considered when DEP is issuing water withdrawal permits.

10 SECTION 3. Local Boards of Health or other appropriate local permitting authority shall
11 implement water conservation measures for these below-threshold wells during drought

12 consistent with the municipality's current drought conditions and water use restrictions or in
13 identified flow depleted basins.

14 SECTION 4. Chapter 21G Section 4 shall be amended to strike the first sentence and
15 replace it with "The withdrawal volume threshold to be applied pursuant to sections five and
16 seven shall be twenty thousand gallons per day."